

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

2024PRDE024576: IN THE MATTER OF RICHARD THOMAS JOHNSON

08/12/2026 in Department J6

Hearing on Petition for Final Distribution

The amended account does not include a schedule for the property on hand at the beginning of the account.

Receipts include \$13,687.47 as “cash from Symetra account.” The I&A attachment 1 included a cash account with Symetra (#4493), valued at \$340.15. Where did the extra money come from? If the cash is proceeds from the sale of the Symetra annuity, it does not appear to be income for purposes of fee calculation.

Petitioner is directed to serve and file a verified supplement addressing the foregoing issues.

Subject to the foregoing, approve the amended account and report. Approve \$22,587.89 in statutory fees each to Petitioner and his counsel, based on the I&A total of \$979,394.45. If the fee base is other than the I&A, the hearing will need to be continued for the Court to calculate the correct fee amount.

Approve \$17.25 in costs reimbursement to Petitioner’s counsel. The costs for filing the corrected I&A and amended account are attributable to accounting deficiencies for which counsel bears responsibility.

Approve \$865.81 in costs reimbursement to Petitioner. Charges for airline tickets, hotel, car rental and gas for attending the decedent’s funeral are not administrative expenses. The legal assistant fee is disallowed. Costs for funeral home are subject to the creditor claims procedure. (Prob. Code, § 9000, subd. (a)(3).) Petitioner did not file a creditor’s claim.

The Court also disallows the \$546.60 Petitioner paid Russell Johnson in airfare to fly to Simi Valley to clean out the decedent’s house. The Court does not find this to be a reasonable expense. The sum of \$546.60 is to be repaid by Petitioner to the estate; the sum can be deducted from his statutory fee as an offset, if he elects to do so.

The proposed final distribution of the estate equally to the decedent’s three siblings is consistent with the laws of intestate succession.